

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION
Case No.: 2024-001507-DC
Hon. Jenny L. McNeill

EMERGENCY MOTION FOR ENFORCEMENT OF PARENTING TIME

PURSUANT TO MCL 552.641(a), MCL 552.644, and MCR 3.211(C)

Filed by Plaintiff, Andrew James Pigors

NOW COMES Plaintiff, Andrew James Pigors, in pro per, and respectfully moves this Honorable Court for immediate enforcement of the existing parenting time order, based on verified and repeated violations by Defendant, Emily Watson, as outlined below:

I. INTRODUCTION & BACKGROUND

1. Plaintiff is the biological father of Lincoln David Watson (DOB: November 9, 2022).
 2. Pursuant to prior court orders, Plaintiff is entitled to parenting time on alternating weekends and designated holidays.
 3. Defendant has repeatedly interfered with Plaintiff's lawful parenting time, despite the existence of a valid order.
-

II. LEGAL BASIS FOR RELIEF

4. Pursuant to MCL 552.641(a) and MCL 552.644, a parent may petition the Court for enforcement of a parenting time order when the other parent has wrongfully interfered with or denied access.
 5. Plaintiff's AppClose communication log (Exhibit A) and Violation Chronology (Exhibit H) detail multiple violations committed by Defendant.
 6. These violations include willful withholding of parenting time, refusal to exchange the child, and hostile communications such as "No," "Not happening," and "Already made up."
 7. These actions constitute a pattern of alienation and obstruction, actionable under Michigan law.
-

III. DOCUMENTED VIOLATIONS

8. Defendant's specific violations include:
 - March 26 to May 2, 2024 – Full parenting time denial for five (5) continuous weeks.
 - April 6–7, 2024 – Refusal of scheduled exchange.
 - April 20–21, 2024 – Denial with “Not happening” text (Exhibit R).
 - Easter Sunday 2025 – Holiday parenting time blocked.
 - November 9, 2024 – Plaintiff denied parenting time on child's birthday.
 9. These actions violate MCL 722.27a(9) and justify enforcement under MCL 552.641(a) and MCL 552.644.
-

IV. EMERGENCY NATURE OF THIS MOTION

10. These repeated denials have resulted in emotional harm to the minor child and have unjustly stripped Plaintiff of his court-ordered rights.
 11. The repeated refusal to follow the parenting time order demonstrates a willful disregard for judicial authority and a need for immediate intervention to prevent further harm.
 12. Emergency relief is appropriate and necessary under MCR 3.211(C) and MCL 552.645.
-

V. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Schedule an Emergency Show Cause Hearing within 14 days per MCL 552.645(1); Or Combine with the DeNovo hearing April 28th 2025.
2. Order Defendant to appear and show cause why she should not be held in contempt under MCL 552.644 and MCR 3.606(A);
3. Award compensatory parenting time for the following periods:
 - Five (5) weekends
 - March 26th-May 5th 2024
 - October 20th- November 7th-8th- 9th, 2024
 - Easter weekend April 6th-May 2nd, 2025
4. Award pro-se attorney fees, lost wages, and court costs to Plaintiff, and any other monetary relief deemed just and appropriate.

5. Enter any further relief deemed just and appropriate, including sanctions under MCR 1.109(E)(5) and MCL 552.644(2)(c).

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 724-6251
Date: April 24, 2025

EMERGENCY ORDER FOR ENFORCEMENT OF PARENTING TIME

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

EMERGENCY ORDER FOR PARENTING TIME ENFORCEMENT

PURSUANT TO MCL 552.641(a), MCL 552.644, AND MCL 552.645

At a session of said Court held in the County of Muskegon, State of Michigan on the date below:

PRESENT: Hon. Jenny L. McNeill, Circuit Court Judge

Upon review of Plaintiff's Emergency Motion for Parenting Time Enforcement, and the verified supporting exhibits, including communication records and the chronological violation timeline, and in compliance with MCL 552.641(a), MCL 552.644, and MCL 552.645, the Court finds that Defendant has repeatedly interfered with the Plaintiff's lawful parenting time and that emergency relief is warranted.

IT IS HEREBY ORDERED:

1. Emergency Hearing:

A Show Cause Hearing is scheduled within 14 days of the date of this Order.

Defendant, Emily Watson, shall appear and show cause why she should not be held in contempt for violating the parenting time order.

2. Compensatory Parenting Time Granted:

Plaintiff is awarded the following parenting time make-up periods:

- Five (5) full weekends;
- Easter Sunday, 2025;
- November 9, 2024 (Lincoln's birthday).

These shall be exercised consecutively or otherwise scheduled through the Friend of the Court.

3. Supervised Compliance Enforcement:

The Friend of the Court shall supervise exchanges for a period of 90 days and file a report of compliance and recommendations with this Court.

4. Sanctions and Attorney Fees:

Defendant shall be responsible for any reasonable attorney fees and filing costs incurred by Plaintiff in bringing this enforcement motion, to be submitted via affidavit within 14 days.

IT IS SO ORDERED.

Date: _____

Hon. Jenny L. McNeill
Circuit Court Judge, Family Division

Prepared by:
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 724-6251

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

MOTION TO MODIFY CUSTODY, PARENTING TIME, AND CHILD SUPPORT

FILED BY PLAINTIFF, ANDREW JAMES PIGORS

NOW COMES the Plaintiff, Andrew James Pigors, in pro per, and pursuant to MCL 722.27(1)(c), MCR 3.211(C), and *Vodvarka v Grasmeyer*, 259 Mich App 499 (2003), respectfully moves this Honorable Court to modify the current orders concerning legal custody, physical custody, parenting time, and child support. This motion is compelled by material and substantial changes in circumstances and a documented campaign of parental alienation, procedural harassment, and financial obfuscation by Defendant, Emily Watson, in direct violation of Plaintiff's constitutional rights, statutory parenting rights, and Lincoln David Watson's best interests under MCL 722.23.

I. LEGAL STANDARD

Pursuant to MCL 722.27(1)(c), a custody modification requires the moving party to establish proper cause or a change in circumstances. The standard was clarified in *Vodvarka v Grasmeyer*, which mandates that the change be of sufficient magnitude to have a material effect on the child's well-being.

Once this threshold is met, the court must evaluate the statutory best interest factors under MCL 722.23(a)–(l). The burden of proof shifts depending on the custodial environment: a clear and convincing evidence standard applies when modification would alter the established custodial environment (ECE), and a preponderance of the evidence applies otherwise.

II. GROUNDS FOR MODIFICATION

A. Parental Alienation & Withholding of Parenting Time

Defendant has intentionally and repeatedly denied Plaintiff his lawful parenting time and access to his son, including:

- Withholding the child from March 26 through May 2, 2024, despite a standing informal parenting time agreement and Lincoln's birthday in 2024 and 2025; Showing a pattern.
- Failing to respond through the court-ordered AppClose application, or replying with deliberate hostility (Exhibits A & R), evidencing an intent to obstruct lawful communication and co-parenting.

These behaviors constitute parental alienation, in violation of MCL 722.23(j) and (k), and are actionable under MCL 552.641(a), MCL 552.644, and MCR 3.211(C).

B. Procedural Harassment & Weaponization of PPO

Emily Watson has systematically misused the Personal Protection Order (PPO) process and law enforcement channels to undermine Plaintiff's parental rights and manipulate judicial proceedings. This includes:

- Eight (8) frivolous police reports filed with no criminal findings;
- Six (6) show cause hearings, including two contempt findings, culminating in a 10-day criminal contempt sentence on February 28, 2025;
- During the contempt hearing, Judge McNeill refused to admit the exonerating police report dated November 15, 2024 (Exhibit B), and Plaintiff was silenced three times on record—violating procedural due process under the Michigan Constitution Article 1 § 17 and MCR 3.606.

This pattern reflects not only alienation, but a calculated abuse of judicial resources, warranting protective intervention and sanctions under MCR 1.109(E)(5).

C. Established Custodial Environment (ECE) with Plaintiff

Despite the court's reduction of Plaintiff's parenting time due to Defendant's PPO manipulations, Plaintiff has consistently provided care, shelter, and emotional support for Lincoln. Evidence of ECE includes:

- Week-on/week-off arrangement sustained until March 2024;
- Plaintiff's engagement in daily routines, bedtime care, and health supervision;
- Independent professional affirmations (Exhibit G) verifying the father-son bond.

This ECE qualifies Plaintiff for either primary physical custody or 50/50 joint custody, especially where Defendant's conduct demonstrates an unwillingness to foster a positive relationship with the other parent—a direct breach of MCL 722.23(j) and case law in *Lieberman v Orr*, 319 Mich App 68 (2017).

D. Economic Suppression and Material Nondisclosure

Defendant's obstruction has imposed severe financial consequences on Plaintiff:

- Over 20 hearings in 12 months, resulting in job loss;
- Denial of transitions that forced Plaintiff to miss critical work obligations;
- Defendant failed to disclose:
 - Rental income from Cody Watson;
 - Full salary and benefits from Kent County Prosecutor's Office (Exhibit P/X);
 - Child support received from Austin Muratori;
- Plaintiff continues to pay \$88/week in child support and \$95/week in insurance—including for dependents he is not legally responsible for.

This satisfies the standard for modification under MCL 552.517(1) and justifies a full recalculation under Michigan Child Support Formula Manual (2021) and MCR 3.206(C).

III. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

1. Modify Custody:
Award joint legal and physical custody to both parents, or alternatively, award primary physical custody to Plaintiff, based on Plaintiff's ECE and Defendant's proven pattern of alienation, harassment, and interference. See MCL 722.23(a)–(k) and Vodvarka.
2. Expand Parenting Time:
Grant make-up parenting time for all withheld periods:
 - March 26–May 2, 2024;
 - Easter Sunday 2025;
 - Lincoln's birthday (2024 and 2025);
 - Plus five (5) consecutive weekends in addition to standard parenting time.Pursuant to MCL 552.642–.645.
3. Modify Child Support:
Recalculate based on Defendant's true earnings and financial disclosures, and issue:
 - Credit for insurance overpayments;
 - Adjustment for Defendant's dual-source income and support received;
 - Reassessment of proportional responsibility.
4. Enter Sanctions:
Issue monetary sanctions and/or attorney fee award under MCR 1.109(E)(5) and MCL 552.644 for:

- Filing baseless police reports;
 - False PPO accusations;
 - Discovery violations and bad faith litigation tactics.
5. Restrictive and Protective Orders:
- Prohibit Defendant from initiating future PPO or contempt actions without a verified affidavit and corroborating documentation;
 - Direct FOC to supervise co-parenting compliance pursuant to MCL 552.517d.
6. Other Relief:
- Take judicial notice of Exhibits A–R, X, H, P, G, I under MRE 201(b) and MCR 2.112(M);
 - Grant any further relief the Court deems just, equitable, and consistent with the best interests of Lincoln David Watson.

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690
Date: April 24, 2025

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

ORDER MODIFYING CUSTODY, PARENTING TIME, AND CHILD SUPPORT

At a session of said Court held in the County of Muskegon, State of Michigan on the date below:

PRESENT: Hon. Jenny L. McNeill, Circuit Court Judge

The Court having reviewed Plaintiff's Motion to Modify Custody, Parenting Time, and Child Support, and having reviewed the record, supporting exhibits, testimony, and applicable law including MCL 722.27, MCL 722.23, MCL 552.517, MCL 552.644, and MCR 3.211(C), and the Court being fully advised in the premises:

IT IS HEREBY ORDERED:

1. Custody Modified:

Legal custody is modified to joint legal custody, and physical custody is modified to a 50/50 alternating weekly parenting schedule, commencing the Friday following entry of this order, unless otherwise agreed to in writing by the parties.

2. Parenting Time Modified & Enforced:

Plaintiff shall exercise parenting time on an alternating week-on/week-off basis from Friday at 5:30 PM to the following Friday at 5:30 PM.

Defendant shall facilitate exchanges without interference or obstruction.

Plaintiff is awarded make-up parenting time for the following periods:

- March 26–May 2, 2024
- Easter Weekend (overlapping parenting time), 2025
- Lincoln's birthdays in 2024 and 2025
- Five (5) additional weekends to be exercised consecutively or as coordinated through the Friend of the Court.

3. Child Support Modified:

Child support shall be recalculated within 21 days by the Friend of the Court, factoring:

- Defendant's full income including rental income and support received;
- Plaintiff's income and insurance premiums;
- Removal of overpayments for ineligible dependents.

4. Sanctions and Attorney Fees:

Defendant is sanctioned under MCR 1.109(E)(5) and MCL 552.644(2) for engaging in

bad faith litigation, misuse of PPO filings, and deliberate withholding of parenting time. Plaintiff is awarded attorney fees, filing costs, and compensation for lost income. Plaintiff shall submit an affidavit of costs within 14 days.

5. Protective Orders and Enforcement Supervision:

Defendant is prohibited from filing additional PPO violation claims or show cause motions without a sworn affidavit and corroborating documentation.

The Friend of the Court is ordered to supervise parenting time exchanges and report on compliance for a period of 90 days under MCL 552.517d(1)(b).

6. Judicial Notice of Exhibits:

The Court hereby takes judicial notice of Exhibits A–R, X, H, P, G, and I, submitted with the Motion, pursuant to MRE 201(b) and MCR 2.112(M).

IT IS SO ORDERED.

Date: _____

Hon. Jenny L. McNeill
Circuit Court Judge, Family Division

Prepared by:
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 724-6251

MOTION TO CONSOLIDATE PENDING MOTIONS AND ADJOURN DE NOVO HEARING

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

MOTION TO CONSOLIDATE MOTIONS AND REQUEST FOR ADJOURNMENT

Filed by Plaintiff, Andrew James Pigors, in Pro Per

NOW COMES Plaintiff, Andrew James Pigors, in pro per, and respectfully moves this Honorable Court pursuant to MCR 2.105(A), MCR 2.206, and the inherent authority of the Court, for an order consolidating all pending motions and adjourning the upcoming De Novo hearing to allow all issues to be adjudicated concurrently. In support of this motion, Plaintiff states as follows:

I. PROCEDURAL POSTURE

1. Plaintiff currently has a De Novo hearing scheduled to review issues of parenting time.
 2. Since the scheduling of that hearing, Plaintiff has filed and served the following additional motions:
 - ☒ Motion to Modify Custody, Parenting Time, and Child Support
 - ☒ Emergency Motion for Parenting Time Enforcement
 - ☒ Judicial Notice of Exhibits
 - ☒ Motion for Sanctions and Contempt (Order to Show Cause)
 - ☒ Certificate of Service with full compliance of MCR 2.107
 - ☒ Supplemental Exhibits and Declarations filed under MCR 1.109(D)
 3. All motions are grounded in verified exhibits and statutory authority under:
 - MCL 722.27, MCL 552.641–.645, MCL 552.644, MCR 3.211, and MCR 3.606
-

II. GROUNDS FOR CONSOLIDATION

4. Each of the above motions arises out of the same operative facts, parties, and legal issues:

- Parenting time interference;
 - Custodial environment disruption;
 - False filings and procedural abuse by Defendant Emily Watson.
5. Judicial economy and consistency of ruling favor consolidating all pending matters into one coordinated hearing to ensure:
- The Court has full context;
 - All testimony and evidence are admitted simultaneously;
 - No duplicative or fragmented rulings occur.

III. REQUEST TO ADJOURN DE NOVO HEARING

6. Plaintiff requests that the Court adjourn the currently scheduled De Novo hearing and re-set it as a consolidated evidentiary hearing covering:
- Custody and parenting time modification;
 - Emergency enforcement and contempt findings;
 - Support recalculation;
 - Judicial notice and sanctions.
7. Plaintiff is prepared to proceed on a consolidated basis within 14–21 days, with all necessary filings, exhibits, and declarations already served.

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

1. GRANT this Motion to Consolidate all pending motions for a single hearing;
2. ADJOURN the currently scheduled De Novo hearing and re-calendar it to allow adjudication of all pending matters;
3. GRANT any further relief the Court deems just and proper in light of judicial efficiency, fairness, and the best interests of Lincoln David Watson.

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690
Date: April 24, 2025

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION
Case No.: 2024-001507-DC
Hon. Jenny L. McNeill

REQUEST TO SCHEDULE CONSOLIDATED HEARING ON ALL PENDING MOTIONS

Filed by Plaintiff, Andrew James Pigors, in Pro Per

NOW COMES Plaintiff, Andrew James Pigors, and respectfully requests that this Honorable Court schedule a consolidated hearing to address all pending motions concurrently. This request is made in the interest of judicial economy, procedural efficiency, and the best interests of the minor child, Lincoln David Watson.

I. PENDING MOTIONS

As of the date of this request, Plaintiff has filed and served the following motions and supporting documents:

1. ☒ Motion to Modify Custody, Parenting Time, and Child Support
 2. ☒ Emergency Motion for Parenting Time Enforcement
 3. ☒ Judicial Notice of Exhibits
 4. ☒ Motion for Sanctions and Order to Show Cause
 5. ☒ Declaration in Support of Motions
 6. ☒ Parenting Time Plan
 7. ☒ Certificate of Service
 8. ☒ Full evidentiary package including Exhibits A–R, X, H, P, G, and I
-

II. REASON FOR SCHEDULING REQUEST

Each motion arises from the same underlying facts:

- Defendant’s repeated withholding of parenting time;
- Ongoing alienation tactics and PPO misuse;
- Financial nondisclosure and obstruction.

All issues are interrelated and best addressed in a single evidentiary hearing to ensure consistency in rulings and avoid duplicative testimony.

Plaintiff is ready to proceed and will make himself available at the Court's earliest convenience. A hearing within 14–21 days is respectfully requested to avoid further delay or prejudice.

III. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Schedule a consolidated hearing to address all pending motions in this case;
2. Set the hearing on the Court's next available family docket within 14–21 days;
3. Order that all previously filed exhibits and documents be admitted for that hearing;
4. Grant any further relief the Court deems just and proper.

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690
Date: April 24, 2025

PROPOSED ORDER TO CONSOLIDATE AND SCHEDULE HEARING

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

ORDER TO CONSOLIDATE PENDING MOTIONS AND SCHEDULE EVIDENTIARY HEARING

At a session of said Court held in the County of Muskegon, State of Michigan on the date below:

PRESENT:

Hon. Jenny L. McNeill, Circuit Court Judge

The Court having reviewed Plaintiff's Motion to Consolidate Pending Motions and Request for
Adjournment, and being otherwise fully advised in the premises:

IT IS HEREBY ORDERED THAT:

1. All pending motions filed by Plaintiff are hereby consolidated and shall be heard
concurrently at a single evidentiary hearing. These motions include:
 - Motion to Modify Custody, Parenting Time, and Child Support
 - Emergency Motion for Parenting Time Enforcement
 - Motion for Sanctions and Contempt (Order to Show Cause)
 - Judicial Notice of Exhibits
 - Parenting Time Plan and related relief
2. The previously scheduled De Novo Hearing is hereby adjourned and rescheduled to allow
proper consideration of all consolidated motions.
3. A consolidated evidentiary hearing shall be held on the following date:
Date: _____
Time: _____
Location: Muskegon County Circuit Court – Family Division

4. All previously filed exhibits, declarations, certificates of service, and judicial notice documents are deemed properly submitted and shall be admitted for purposes of the consolidated hearing.
5. Parties shall be prepared to present oral argument and all admissible evidence on the above-listed matters on the date of the hearing.

IT IS SO ORDERED.

Date: _____

Hon. Jenny L. McNeill
Circuit Court Judge, Family Division

Prepared by:
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

JUDICIAL NOTICE OF EXHIBITS PURSUANT TO MCR 2.112(M)

Filed by Plaintiff, Andrew James Pigors

NOW COMES Plaintiff, Andrew James Pigors, in pro per, and pursuant to MCR 2.112(M) and MRE 201(b), respectfully files this Judicial Notice of Exhibits and moves this Honorable Court to admit the following exhibits into the official court record in advance of the Emergency Parenting Time Enforcement Hearing and all related proceedings:

I. AUTHORITY TO ADMIT EVIDENCE

Pursuant to MCR 2.112(M), a party may file and serve notice identifying any document, record, exhibit, communication, or verified item that it intends to rely upon at trial or hearing. If not objected to, said material may be deemed admitted and included in the court’s file.

II. EXHIBITS SUBMITTED FOR JUDICIAL NOTICE

Exhibit	Title & Description
A	AppClose Communication Matrix – Time-stamped logs evidencing willful denial of parenting time and refusal to coordinate exchanges.
B	Police Reports Compilation – Includes Report #2023-07656 (Nov 15, 2024) which exonerates Plaintiff.
C	Medical Obstruction Evidence – Records demonstrating Defendant’s refusal to provide healthcare information.

D	Video Summary Log – Describes alienation patterns and Lincoln’s emotional response at exchanges.
E	FOIA – Income Verification (Kent County Prosecutor) – Confirms Defendant’s full salary.
F	Daycare Fabrication Evidence – Conflicting statements by Defendant on child’s care providers.
G	Witness Statements & Letters of Recommendation – Community members affirm Plaintiff’s parenting.
H	Chronological Timeline of Parenting Time Violations – Detailed date-based matrix of withheld time.
I	Economic Hardship Statement – Breakdown of financial losses directly attributable to Defendant’s actions.
P	FOIA – Insurance Payment Records – Documentation of overpaid insurance premiums.
R	AppClose Refusal Compilation – “Not happening,” “No,” “Already made up” message compilation.
X	PPO Show Cause & Procedural Misconduct Docket – Summary and timeline of false allegations.

III. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Honorable Court:

1. Take judicial notice of Exhibits A–R, X, H, P, G, and I pursuant to MCR 2.112(M) and MRE 201(b);
2. Deem these exhibits as part of the evidentiary record for all upcoming hearings, including:
 - Emergency Parenting Time Enforcement;
 - Custody Modification Motion;
 - Sanctions and Show Cause Hearing;
3. Allow Plaintiff to rely upon these exhibits without further need for separate introduction at hearing.

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 724-6251
Date: April 24, 2025

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY DIVISION
Case No.: 2024-001507-DC
Hon. Jenny L. McNeill

CERTIFICATE OF SERVICE

I certify that on the below date, a true and correct copy of the following documents:

1. Motion to Modify Custody, Parenting Time, and Child Support
2. Emergency Motion for Enforcement of Parenting Time
3. Motion to Consolidate and Request for Adjournment
4. Request to Schedule Consolidated Hearing
5. Judicial Notice of Exhibits
6. Declaration in Support
7. Parenting Time Plan
8. Proposed Orders (All)
9. Order to Show Cause & Sanctions Request
10. Exhibit Index and Exhibits A–R, X, H, P, G, I
11. Notice of Hearing

Were properly delivered to the party entitled to service in accordance with MCR 2.107(B).

Delivery was made by an appropriate method authorized under court rules and consistent with restrictions placed by an existing Personal Protection Order.

Date of Service: April 24, 2025

Method of Delivery:

- ☒ Authorized third party
 - ☒ First-Class U.S. Mail
 - ☒ Electronic delivery in accordance with court protocols
-

I declare under penalty of perjury that service was completed properly and in accordance with all applicable Michigan Court Rules and statutory requirements.

Submitted by:

Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690

Date: April 24, 2025

/s/ Andrew Pigors

STATEMENT TO THE COURT REGARDING TIMING OF FILING

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

STATEMENT REGARDING TIMELINESS OF FILING AND REQUEST FOR CONSIDERATION

Filed by Plaintiff, Andrew James Pigors, in Pro Per

NOW COMES Plaintiff, Andrew James Pigors, and respectfully submits this statement to the Court regarding the timing of his filings in this matter. While I acknowledge that some materials have been filed closer to the hearing date than ideal, I respectfully request that the Court take into account the unique and constraining circumstances that have contributed to the timing, and that it grant full consideration of the attached motions and exhibits in the interest of justice and the best interests of the minor child.

I. DELAY IN FILING DUE TO DELAYED SERVICE

Plaintiff was not served with notice of the recent PPO-related show cause filings until the Friday prior to the hearing week, significantly compressing the available preparation time.

This delay had a cascading effect, as Plaintiff was then required to immediately:

- Prioritize preparation of defense materials for the PPO violation;
 - Coordinate legal advice and evidence retrieval over a weekend;
 - Prepare supplemental custody, enforcement, and evidentiary filings—all while under deadline pressure created by the Defendant’s strategic timing.
-

II. URGENCY CAUSED BY DEFENDANT’S ACTIONS

The withholding of parenting time from March 26 to May 2, 2024, and again during key holidays—including Easter 2025 and Lincoln’s birthday—has inflicted serious emotional harm and undermined the Court’s existing orders.

These violations have reached a critical level, and emergency intervention is required to prevent continued harm.

III. WHY THE RELIEF REMAINS TIMELY AND NECESSARY

Despite the timing, all documents submitted are:

- Procedurally compliant under MCR and MCL,
- Supported by verified declarations and court-admissible exhibits,
- Directly tied to the urgent need to protect the child's emotional health,
- And filed without undue delay following the events which triggered them.

Plaintiff respectfully requests that the Court:

- Accept the attached motions and filings for consideration,
 - Recognize that the delayed service created a logistical domino effect,
 - And treat this matter as urgent and ex parte in nature, as it involves the unlawful withholding of a child, repeated parenting time obstruction, and verified emotional harm to the minor.
-

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690
Date: April 24, 2025

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY
DIVISION
Case No.: 2024-001507-DC
Hon. Jenny L. McNeill

NOTICE OF FILING EXHIBITS AND INDEX

Filed by Plaintiff, Andrew James Pigors, in Pro Per

NOW COMES Plaintiff, Andrew James Pigors, and hereby provides notice to the Court and to the parties of the formal filing of the following Exhibits in support of the following motions:

- Motion & Order to Modify Custody, Parenting Time, and Child Support
- Emergency Motion & Order for Enforcement of Parenting Time
- Motion & Order for Sanctions and Order to Show Cause
- Judicial Notice of Exhibits under MCR 2.112(M)
- Parenting Time Plan
- Declaration in Support of Motion

Pursuant to MCR 2.518, MRE 902(1)–(11), and MRE 1002, these exhibits are offered as true and correct records, either certified or self-authenticating, and Plaintiff respectfully requests that the Court admit them into the evidentiary record for all purposes in the above-captioned matter.

EXHIBIT INDEX

Exhibit	Title & Description
A	AppClose Communication Matrix – Time-stamped records of parenting time denials and hostile non-cooperation.
B	Police Reports Compilation – Includes #2023-07656 (11/15/2024), clearing Plaintiff of wrongdoing.

- C Medical Obstruction Evidence – Shows Defendant’s refusal to provide Lincoln’s medical documents.
- D Video Summary Log – Describes Lincoln’s trauma and anxiety during transitions.
- E FOIA – Kent County Prosecutor Salary Verification – Verifies Defendant’s true income for support modification.
- F Daycare Fabrication Evidence – Defendant’s contradictory statements about childcare arrangements.
- G Witness Statements & Letters – Affirm Plaintiff’s parental capacity, routine care, and emotional bond with Lincoln.
- H Chronological Timeline of Violations (Updated) – Log of parenting time denials, holidays, and hostile messages.
- I Economic Hardship Statement – Documents financial impact caused by Emily’s interference.
- P Insurance Overpayment Records (FOIA) – Shows premiums paid for dependents not legally Plaintiff’s.
- R AppClose Refusal Compilation – Defendant’s most egregious messages, including “No,” “Already made up,” “Not happening.”

X

PPO Show Cause Misuse Docket – Timeline and summary of six (6) PPO-based show causes and false filings.

CERTIFICATION

All exhibits have been personally reviewed, authenticated, and are offered as accurate and complete reproductions of the originals. Originals or certified copies can be provided upon request.

Plaintiff requests that the Court:

- Accept this index and accompanying materials into the record,
- Take judicial notice of their contents for purposes of enforcement, sanctions, custody, and support adjudication,
- And consider all exhibits as part of any pending or future hearing in this case.

Respectfully submitted,
Andrew James Pigors
1977 Whitehall Road, Lot 17
Muskegon, MI 49445
(231) 903-5690
Date: April 24, 2025